

2025 MLD 1973

[Lahore (Rawalpindi Bench)]

Before Jawad Hassan, J

Fahim Ahmed Saeed and others---Appellants

Versus

Mian Humayun Mahmud and others---Respondents

F.A.O. No. 81 of 2025, decided on 26th June, 2025.

(a) Civil Procedure Code (V of 1908) ---

---O.XXXIX, Rr.1, 2 & O.XLIII, R.1(r)---Appeal against order--- Trial Court "turning down" the request for grant of ad-interim relief ---"Turned down", terminology of---Scope ---Trial Court should either accept or dismiss the request for grant of ad-interim relief and terminology of "turned down" is not to be used ---Appellants filed a suit for declaration, recovery and permanent injunction along with an application under O.XXXIX, R.1 & 2 of C.P.C. for grant of temporary injunction but the Trial Court "turned down" their requests for grant of ad-interim relief --- Validity --- Without discussing the reasons/grounds taken by the Trial Court for "turning down" the appellants' request for grant of temporary injunction the terminology "turned down" was not to be used in deciding application under O.XXXIX, R.1 & 2 of C.P.C. and the Trial Court should accept or dismiss it---Order XXXIX, R.1 & 2 of C.P.C. provided that court could grant a temporary injunction to restrain a party from committing an act that could cause injury to the other party or damage to the subject matter of the suit on specific terms, such as duration, keeping an account or providing security --- Impugned order of Trial Court suffered from a legal lacuna and it could not be sustained and the same was set-aside--- Appellants' application for grant of temporary injunction was deemed to be pending before the Trial Court for decision afresh---Appeal against order was disposed of, in circumstances.

Shariq Builders and Property Advisors v. Dr. Muhammad Faisal Murad and others 2024 MLD 32 ref.

(b) Civil Procedure Code (V of 1908) ---

---O.XXXIX, Rr.1, 2, O.XLIII, R.1(r) --- Appeal against order of Trial Court refusing to grant ad-interim relief --- Order of Trial Court suffering from legal lacuna ---High Court dispensing with the requirement of issuing notice to opposite side to promote the principle of speedy justice ---Limine control, doctrine of --- Applicability and scope --- Under the doctrine of limine control for early and expeditious disposal of a case, the court can decide the matter at limine stage on the basis of material/documents available on the record/file and without issuing notice to other side so that the party concerned may not face inconvenience or monetary loss in approaching the High Court.

Asif Saleem v. Chairman BOG University of Lahore and others PLD 2019 Lah. 407 ref.

Sardar Nisar Ahmed on behalf of the Appellants.

Order

Jawad Hassan, J.---The Appellants have filed this appeal under Order XLIII of C.P.C. against the impugned order dated 12.06.2025, passed by Civil Judge, Rawalpindi, whereby their application for grant of temporary injunction has been turned down.

2. At the outset, learned counsel submits that against the impugned order the Appellants have also filed an appeal before the Additional District Judge, Rawalpindi but subsequently, the same was withdrawn vide order dated 17.06.2025 due to lack of pecuniary jurisdiction. He further submits that the Appellants have a strong case for grant of interim injunction but the Civil Judge has turned down their request through the impugned order by not considering material aspects of the matter in true perspective. He prays for setting aside of the impugned order, being illegal and against the norms of justice.

3. Arguments heard and record perused.

4. Since short point is involved, notice to other side is dispensed with to avoid further delay and to promote the principle of speedy justice. Moreover, under the doctrine of limine control developed by this Court in *Asif Saleem v. Chairman BOG University of Lahore and others* (PLD 2019 Lahore 407) for early and expeditious disposal of a case, the Court can decide the matter at limine stage on the basis of material/documents available on the record/file and without issuing notice to other side so that the party concerned may not face inconvenience or monetary loss in approaching this Court.

5. Admittedly, the Appellants have filed a suit for declaration, recovery and permanent injunction along with an application under Order XXXIX Rules 1 and 2 of C.P.C. for grant of temporary injunction but the Civil Court has "turned down" their request for grant of an ad-interim relief through the impugned order dated 12.06.2025. Without discussing the reasons/grounds taken by the Civil Court for "turning down" the Appellants' request for grant of temporary injunction, significant to mention here is that the terminology "turned down" is not used in deciding an application Order XXXIX Rules 1 and 2 of C.P.C. and the Civil Court should accept or dismiss it. If a quick glance is taken on the provisions contained in Order XXXIX Rules 1 and 2 of C.P.C., it will elucidate that the Court may grant a temporary injunction to restrain a party from committing an act that could cause injury to the other party or damage to the subject matter of the suit on specific terms, such as duration, keeping an account or providing security. In the case of *Shariq Builders and Property Advisors v. Dr. Muhammad Faisal Murad and others* (2024 MLD 32), this Court has already discussed and elaborated these provisions of C.P.C.

6. In view of the above, since the impugned order suffers from a legal lacuna, it cannot be sustained and the same is hereby set-aside. The Appellants' application for grant of

temporary injunction will be deemed to be pending before the Civil Court which will decide the same afresh strictly as per law.

Disposed of.

UN/F-12/L

Order accordingly.